

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Post-Rehearing Release Order

Entered July 13, 2026

The City of Norvale's timely petition for panel rehearing and rehearing en banc was denied on July 6, 2026. Seven days have elapsed since entry of that order. No motion to stay the mandate is pending, no further direction withholding issuance has been entered, and the docket reflects no unresolved filing that prevents ordinary release under Federal Rule of Appellate Procedure 41.

The Clerk is authorized to issue the mandate today. The mandate shall transmit certified copies of the June 18 opinion and judgment and the July 6 rehearing order to the United States District Court for the District of South Carolina. It shall state the limited nature of the remand and the continuing effect of preliminary protection exactly as directed by the panel.

Release does not enlarge the appellate disposition. The Court affirmed the Piedmont Booksellers Guild's entitlement to preliminary protection on the record presented, denied the City's recurring-events mootness request, and remanded only for a superseding order complying with Rule 65(c) and Rule 65(d). The January 23 injunction remains effective until that superseding compliant order enters. Issuance of mandate does not dissolve the protection, decide permanent relief, or prevent the district court from addressing materially changed circumstances on an appropriate record.

Each side shall bear its own appellate costs. Electronic notice shall issue to counsel and the district clerk. Entered July 13, 2026, by the Clerk under the panel's judgment and the applicable mandate rule.